# Notification Waiver Determination

## CVC Capital Partners – IRCA Group

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| **Acquisition** | CVC Capital Partners plc (**CVC plc**, and together with its affiliates and its subsidiaries, the **CVC Network**), through Ibert Investments S.à.r.l (the **Purchaser**), applied for a notification waiver in respect of its proposed acquisition of 100% of the shares in IRCA Group Luxembourg MidCo 4 S.à.r.l. (together with is direct and indirect subsidiaries, the **IRCA Group**), as described in the transaction documents provided as part of the application (the **Acquisition**). |
| **Determination** | The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified. |
| **Date of determination** | 17 August 2026 |

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| **Parties to the Acquisition** | The Purchaser is indirectly controlled by funds or vehicles advised and/or managed by affiliates of CVC plc. The CVC Network is a global alternative investment manager focused on private equity, credit, infrastructure and secondaries, and includes CVC plc, each of its subsidiaries from time to time, and the CVC Funds (defined below). CVC plc is listed on the Amsterdam Stock Exchange. As it relates to the CVC Network's private equity activities, CVC plc indirectly, through certain of its subsidiaries from time to time, provides investment advice to and/or manages investments on behalf of certain funds and investment vehicles (the **CVC Funds**).<br><br>The CVC Network holds interests in a number of companies active in a variety of industries around the world, including in financial services, chemicals, utilities, manufacturing, retailing and distribution, in Europe, the US and the Asia-Pacific region.<br><br>The target, the IRCA Group, is a food ingredients business headquartered in Gallarate, Italy. The IRCA Group is active in the production and distribution of ingredients, semi-finished and finished products for the confectionery, gelato, and bakery industries.<br><br>In Australia, the IRCA Group sells semi-finished gelato ingredients, industrial chocolate, chocolate decorations and inclusions, compound chocolate, fat-based and water-based coatings and fillings, and semi-finished pistachio products, and distributes food products to food service customers.<br><br>CVC is also in the process of acquiring International Flavors & Fragrances Inc.'s (together with its direct and indirect subsidiaries, **IFF**) Food Ingredients business that develops, manufactures and sells ingredient solutions for the food and beverage industry. Its main product lines are developed across seven key operations: |

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| | ingredient systems, protein solutions, emulsifiers, texturants, food inclusions, sweeteners, and food protection. The IRCA Group and IFF's Food Ingredients business both supply certain food ingredient solutions, such as food systems and inclusions. |
| **Explanation for determination** | In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application, the notification waiver application in respect of CVC's proposed acquisition of IFFs Food Ingredients business, and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**).<br><br>Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given:<br><br>a. there is no current horizontal overlap between CVC (and its portfolio companies) and the IRCA Group in the supply of food ingredients in Australia<br><br>b. once IFF's Food Ingredients business is included, the parties' combined share in the supply of food ingredient solutions to customers in Australia would be low, and the increase in share of supply arising from the Acquisition would be small<br><br>c. there are alternative suppliers of food ingredient solutions to customers in Australia.<br><br>In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met.<br><br>Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified.<br><br>The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition.<br><br>For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines. |

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act**